



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 19, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20908
(SECOND REVISION)

EXPIRATION DATE: 2025-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: KTMI Rail Co., Ltd.
Busan, South Korea

US AGENT: Baier Rail
Costa Mesa, CA

2. PURPOSE AND LIMITATIONS:

a. This special permit authorizes the manufacture, mark, sale, and use of manway nozzles fabricated using ASTM A537 Class 1 material for installation on DOT 117 specification tank cars. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.

c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing special permit. These components may be used in accordance with 49 CFR 173.22a.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a) and 172.302(c) in that the special permit number need not be notated on shipping papers or marked on the tank cars; and § 179.200-7 in that the manway nozzle is fabricated using ASTM A537 Class 1 material.

5. BASIS: This special permit is based on the application of KTMI Rail Co., Ltd. dated September 1, 2021, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Non-pressurized hazardous materials listed in § 172.101, which are authorized to be shipped in DOT 117 tank cars.	Various	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: The grantee of this special permit is authorized to manufacture, mark, and sell manway nozzles fabricated using ASTM A537 Class 1 material for installation on DOT 117 specification non-pressure tank cars. The manway nozzle must conform to the drawings and documents on file with the Office of Hazardous Materials Safety.
- b. TESTING: One in every fifty nozzles manufactured must have the groove weld joints inspected by radiography (RT) after final inspection in accordance with Association of American Railroads Specifications for Tank Cars, M-1002 Appendix W. The results of each inspection shall be documented before and after any repairs are made in accordance with M-1002 Appendix T and the results reported to FRA quarterly.
- c. OPERATIONAL CONTROLS:
- (1) This special permit authorizes ASTM A537 Class 1 manway nozzles applied to the new and retrofit DOT 117 specification rail tank cars.
- (2) Each manway nozzle manufactured under the terms of this special permit must be stamped with "SP-20908".

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read 'W. Schoonover', is written over a horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MAJORS/NICKS